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Provision of November 13, 2024
Register of provisions
n. 664 of November 13, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning the
protection of natural persons with regard to the
processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "GDPR");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the
protection of personal data" (hereinafter "Code");

HAVING REGARD to General Provision No. 243 of May 15, 2014, containing the "Guidelines on the
processing of personal data, including in acts and administrative documents, carried out for the
purposes of publicity and transparency on the web by public entities and other obligated entities,"
published in G.U. No. 134 of June 12, 2014, and on www.gpdp.it, doc. web n. 3134436 (hereinafter
"Transparency Guidelines");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures with external relevance,
aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection
of personal data, approved by Resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8,
2019, and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for
the protection of personal data, on www.gpdp.it, doc. web n. 1098801;

Reporting by Prof. Ginevra Cerrina Feroni;

PREMISE

1. Introduction

This Authority has received a complaint submitted by Mr. XX (hereinafter "complainant"), alleging a
violation of the regulations regarding the protection of personal data by the Municipality of Ugento.
Specifically, the dissemination of the complainant's personal data, reported in the Municipal Council
Resolution No. XX of XX published online, concerning "XX acquired under the entity's protocol No. XX
of XX. Determinations," was contested.

In this regard, from the preliminary verification carried out by the Office, it emerged that on the official
website of the aforementioned Municipality, in the "Transparent Administration" section, present on the
homepage, in the "XX" area, it was possible to view and download the Council Resolution No. XX. In
the cited resolution, concerning the determinations regarding the presentation of a popular petition, it
was stated that "on XX, a petition/proposal was acquired under the entity's protocol No. XX, submitted
on behalf of No. 265 signatories, by Dr. XX born in XX on XX and residing there XX," thereby also
disseminating the complainant's name as well as the related residence with date and place of birth.
Mr. XX also represented in the complaint that he had already reported the issue to the Municipality,
sending a specific email to Dr. XX – indicated in the resolution as "XX" – but had not received any

response from the administration.

2. The regulations regarding the protection of personal data

According to the relevant regulations, "personal data" is "any information relating to an identified or identifiable natural person ('data subject')" and "an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person" (Article 4, paragraph 1, no. 1, of the GDPR).

Public entities, such as the Municipality, may disseminate "personal data" in compliance with the regulations regarding the protection of personal data (Article 2-ter, paragraphs 1 and 3, of the Code) and – in any case – the principle of "minimization," according to which personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (Article 5, paragraph 1, letter c, of the GDPR).

The relevant state legislation provides that "All resolutions of the municipality and province are published by posting on the notice board, at the entity's headquarters, for fifteen consecutive days, unless specific legal provisions provide otherwise" (Article 124, paragraph 1, Legislative Decree No. 267 of August 18, 2000).

However, it should be noted that this Authority has indicated on several occasions that the presence of a specific publicity regime cannot in any case lead to any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding the protection of personal data of European origin, as provided by the GDPR.

This is also confirmed by the system of protection of personal data contained in the GDPR, according to which the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed."

necessary for each specific purpose of the processing" ("data protection by default") and must be "able to demonstrate" – in light of the principle of "accountability" – that it has done so (Articles 5, paragraph 2; 24 and 25, paragraph 2, GDPR). Since 2014, the Authority has provided specific guidance to administrations on the precautions to be taken for the dissemination of personal data online with general provision no. 243 of 15/5/2014, containing the "Guidelines on the processing of personal data, including those in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities," published in G.U. no. 134 of 12/6/2014 and on www.gpdp.it, web doc no. 3134436 (currently being updated, but still relevant in its substantial part).

3. Preliminary assessments of the Office on the processing of personal data carried out.

From the checks carried out based on the elements acquired and the facts emerged following the investigation activity, as well as subsequent assessments, the Office, with note prot. no. XX of XX, has ascertained that the Municipality of Ugento – disseminating the data and personal information of the complainant described above – has acted in a manner not compliant with the relevant regulations on personal data protection contained in the GDPR. Therefore, with the same note, the aforementioned entity was notified of the violations committed (pursuant to Article 166, paragraph 5, of the Code), communicating the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the GDPR and inviting the administration to submit written defenses or documents to the Authority, and, if necessary, to request to be heard by this Authority, within a period of 30 days (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law no. 689 of 24/11/1981).

4. Defensive memoranda.

The Municipality of Ugento, with note prot. no. XX of XX, sent its written defenses to the Authority regarding the notified violations. In this regard, it is recalled that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code, titled

"Falsehood in declarations to the Authority and interruption of the execution of the tasks or exercise of the powers of the Authority." Specifically, regarding the conduct exhibited, the administration highlighted, among other things, that:

- "The Data Controller, upon receiving the communication, promptly informed the DPO, who, in turn, proceeded to carry out a timely check on the institutional website, ascertaining that it was possible to download and view the Municipal Council Resolution no. XX and that it clearly reported the name of the complainant as well as the related residence with place and date of birth, from the institutional website of the Municipality of Ugento, in the section 'Transparent Administration,' in area XX";
- "The name and other information related to the interested party that could allow identification were promptly obscured, and it was a mere oversight. An unintentional violation of the rule protecting personal data";
- "The undersigned appropriately informed the interested party of the intervention carried out to protect their rights with [...] certified email [identified in the documents]."

5. Assessments of the Authority

The issue at hand in the case submitted to the Authority concerns the online publication by the Municipality of Ugento of the Municipal Council Resolution no. XX, relating to the determinations of the entity following the submission of a petition/popular proposal requesting the intervention of the municipal administration to undertake the necessary actions for the realization of a multipurpose sports facility. The resolution clearly reported the complainant's data (name, residence, date and place of birth), as well as the circumstance of having submitted the petition to the Municipality on behalf of other hundreds of signatories. In the context of the investigation opened regarding this matter by this Authority, the Municipality confirmed, in its defensive memoranda, the occurrence of the online dissemination of the described personal data, attributing its conduct to a mere unintentional oversight. The entity also stated that following the intervention of the Authority, it promptly obscured the name and other information related to the interested party that could allow identification, communicating this to the latter via certified email.

6. Outcome of the investigation regarding the complaint submitted

The circumstances highlighted in the defensive writings of the Municipality, examined as a whole, although certainly deserving of consideration for the assessment of the conduct, are not sufficient to allow the closure of the present procedure. This is because, in the case at hand, none of the hypotheses provided for in Article 11 of the Authority's Regulation no. 1/2019 apply. In this context, the preliminary assessments of the Office with note prot. no. XX of XX are confirmed, and it is noted that the processing of personal data carried out by the Municipality of Ugento is not compliant with the relevant regulations on personal data protection. The Municipal Council Resolution no. XX, within which the personal data of the complainant were indeed contained, essentially concerned the determinations made by the entity following the submission of the petition/proposal. popular with which the intervention of the municipal administration was requested to undertake the necessary actions for the realization of a multipurpose sports facility. With respect to such decisions, the online dissemination of the personal data of Mr. XX – such as name, date and place of birth, registered residence – appears to be a disproportionate and unnecessary operation, with the consequence that the personal data of the complainant are not "limited to what is necessary in relation to the purposes for which they are processed," in violation of the principle of "minimization" provided for by art. 5, par. 1, lett. c), of the GDPR.

7. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i; 83 of the GDPR; art. 166, comma 7, of the Code)

The Municipality of Ugento is found to have violated art. 5, par. 1, lett. c), of the GDPR. In this regard, the violation of the cited article is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the GDPR. The Guarantor, pursuant to arts. 58, par. 2, lett. i) and 83 of the GDPR, as well as art. 166 of the Code, has the corrective power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case]." In

this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, comma 7, of the Code" (art. 16, comma 1, of the Guarantor's Regulation no. 1/2019).

The aforementioned administrative pecuniary sanction imposed based on the circumstances of each individual case must be determined in amount, taking due account of the elements provided for by art. 83, par. 2, of the GDPR.

In this sense, it is taken into account that the contested conduct involved the unlawful online dissemination of personal data not belonging to special categories nor to criminal convictions or offenses (arts. 9 and 10, of the GDPR), referring to a single data subject, maintained on the institutional website at least until the date of the submission of the Municipality's defensive briefs (more than six months). This conduct arises in any case – according to what was stated by the Municipality – from a mere unintentional oversight and is therefore evidently negligent in nature.

It is therefore considered that, in this specific case, the level of severity of the conduct held by the data controller is medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of 23/5/2023, point 60).

That said, in addition to taking into account the circumstance that the Municipality of Ugento is a medium-sized local authority (approximately 12,000 inhabitants), the following mitigating circumstances are also considered:

- the data controller, following the request of the Office, intervened promptly, collaborating with the Authority during the investigation of this proceeding in order to remedy the violations, mitigating their possible negative effects, declaring, for this purpose, that the conduct has ceased having removed the data from the institutional website;
- there are no previous relevant violations of the GDPR committed by the entity.

In light of the aforementioned elements, assessed in their entirety, it is deemed necessary to determine pursuant to art. 83, par. 2 and 3, of the GDPR the amount of the pecuniary sanction, provided for by art. 83, par. 5, of the GDPR, in the amount of € 2,400.00 (two thousand four hundred) for the violation of art. 5, par. 1, lett. c), of the GDPR, as an administrative pecuniary sanction deemed effective, proportionate, and dissuasive pursuant to art. 83, par. 1, of the same GDPR.

In this context, it is also considered that, pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Guarantor's Regulation no. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed.

This is in consideration of the specific circumstances of this case, concerning the lack of control by the Municipality over the documents published online that led to the dissemination of the complainant's personal data in violation of the principle of minimization (art. 5, par. 1, lett. c, of the GDPR) and the circumstance that the complainant had attempted to report the issue to an official of the entity without receiving a response.

Finally, it is believed that the conditions referred to in art. 17 of the Guarantor's Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

a) pursuant to arts. 57, par. 1, lett. f) and 83, of the GDPR, notes the illegality of the processing carried out by the Municipality of Ugento in the terms indicated in the motivation for violation of art. 5, par. 1, lett. c), of the GDPR;

ORDERS

the Municipality of Ugento, in the person of the legal representative pro tempore, with registered office at P.zza Adolfo Colosso - 73059 Ugento (LE) – C.F. 81003470754 to pay the sum of € 2,400.00 (two thousand four hundred) as an administrative pecuniary sanction for the violations mentioned in the motivation;

COMMANDS

the same Municipality to pay the sum of € 2,400.00 (two thousand four hundred), according to the methods indicated.

attached, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender

retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction, within the term provided for in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, as required for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code).

ORDERS

- a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of the injunction order on the Guarantor's website;
- b) pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website;
- c) pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the GDPR, in the internal register of the Authority provided for in Article 57, paragraph 1, letter u) of the GDPR.

Pursuant to Article 78 of the GDPR, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei